

VCL326680 Arthur J. Gallagher Risk Management Services, LLC vs. Madpaim Inc.

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-07-16

Motion: Plaintiff's Motion to Set Aside / Vacate Dismissal

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Re: Arthur J. Gallagher Risk Management Services, LLC vs. Madpaim Inc.

Case No.: VCL326680

Date: July 16, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiff's Motion to Set Aside / Vacate Dismissal

Tentative Ruling: To grant the motion

Facts

On October 7, 2025, Plaintiff sued Defendant "MADPAIM INC. DBA MAP AUTO REPAIR DBA ABOVE AND BEYOND AUTO BODY PAINT AND ACCESSORIES DBA FIX AUTO VISALIA" for failure to pay insurance premiums.

No timely proof of service was filed.

On December 29, 2025, this Court set an order to show cause re: sanctions and dismissal for failure to file a proof of service. Notice was sent to the address of counsel stated on the complaint.

At the OSC hearing on January 29, 2026, no appearances were made and this matter was dismissed without prejudice.

On June 11, 2026, Plaintiff filed this motion for relief from dismissal pursuant to Code of Civil Procedure section 473(b). In support, Plaintiff's counsel states the following:

“4. Defendant was personally served on 05/15/2026. It was only upon receipt of a filing reject for the proof of service that my office became aware that the case had been dismissed.

5. My office first became aware of the OSC that had been scheduled for 01/29/2026 when researching the reason for the case dismissal. Therefore, due to inadvertence, I either misplaced the notice of this hearing date, or never received notice of the hearing date, and thus, said date never got calendared by my office.

6. I discovered the calendar date only after the Court rejected the proof of service filing and advised that the entire case had been dismissed due to lack of prosecution.

7. In response to being advised of the dismissal, I searched my entire office in an attempt to locate a Notice from the Court. However, I did not find one, and have still not been able to find, a Notice of an OSC re Dismissal.

8. Due to my inadvertence, the OSC was never calendared, and thus, I never appeared at the OSC re Dismissal that was heard on 01/29/2026.” (Declaration of Gaba Jr. ¶¶4-8.)

No opposition appears to have been filed.

Authority and Analysis

Where an “attorney affidavit of fault” is filed, there is no requirement that the attorney’s mistake inadvertence, etc., be excusable. Relief must be granted even where the default or dismissal resulted from inexcusable neglect by the defendant’s attorney (Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868 897 (disapproved on other grounds in Even Zohar Const. & Remodeling, Inc. v. Bellaire Townhouses LLC (2015) 61 Cal.4th 830, 845)

The Court is not concerned with the reason for the attorney’s inexcusable mistake (Billing v. Health Plan of America (1990) 225 Cal.App.3d 250, 256.) Rather, the trial court may deny the motion if it finds that the attorney’s declaration of fault is not credible. (Cowan v. Krayzman (2011) 196 Cal.App.4th 907, 915)

The Court accepts counsel’s declaration as to the calendaring error and lack of receipt of the notice. The purpose of the mandatory relief section of section 473(b) is “to alleviate the hardship on parties who lost their day in court due solely to an inexcusable failure to act on the part of their attorneys.” (Zamora v. Clayborn Contracting Group, Inc. (2002) 26 Cal.4th 249, 257.)

The Court, therefore, grants the motion and vacates the dismissal.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.